

		Defendant shall give notice.
10.	2024-1376456 Khorramian vs. BMW of North America, LLC	Defendant BMW of North America, LLC’s motion for summary judgment on plaintiff Reza Khorramian complaint is denied. Defendant’s motion for summary adjudication is granted in part and denied in part. The motion is granted as to Plaintiff’s fifth cause of action for violation of the Consumer Legal Remedies Act; the motion is otherwise denied. <u>Facts</u> This is essentially a Song-Beverly action. Plaintiff asserts five causes of action against Defendant BMW: (1) breach of express warranty in violation of Song-Beverly; (2) breach of implied warranty in violation of Song-Beverly; (3) Violation of Song Beverly, Civil Code § 1793.2(b); (4) violation of the Magnuson-Moss Warranty Act; and (5) violation of the Consumer Legal Remedies Act. Plaintiff alleges he purchased the BMW vehicle in issue – he paid the down payment and is making the monthly payments. He is a “Buyer” under the Song Beverly Act. [Complaint, ¶¶ 12, 23.] He also alleges the vehicle is a “consumer good” acquired primarily for family or household purposes and Plaintiff has used the Vehicle primarily for those purposes. [<i>Id.</i>, ¶ 22.] <u>Legal Standard</u> A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . .” <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850. “A prima facie showing is one that is sufficient to support the position of the party in question.” <i>Id.</i> at 851. A defendant seeking summary judgment meets the burden of showing that a cause of action has no merit by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action. Code Civ. Proc. § 437c(p)(2); <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575. The scope of this burden is determined by the allegations of the plaintiff’s complaint. <i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–382 (pleadings serve as the outer measure of materiality in a summary judgment motion); <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 (respondent only required to defeat allegations reasonably contained in the complaint). A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. <i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.

Once the defendant's burden is met, the burden shifts to the plaintiff to show that a triable issue of fact exists as to that cause of action. *Id.* In making this determination, the moving party's affidavits are strictly construed while those of the opposing party are liberally construed. *Villacres v. ABM Industries, Inc.*, 189 Cal.App.4th at 575. The facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences therefrom must be accepted as true. *Id.*

A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Code Civ. Proc. §437c(f)(1). "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." *Id.*

Discussion

First, Second, and Third Causes of Action for Violation of the Song-Beverly Act

To bring a claim under the Song-Beverly Consumer Warranty Act (the Act) (Civ. Code, § 1790 et seq.), the plaintiff must be the buyer of the subject vehicle. *Towns v. Hyundai Motor Am.*, 117 Cal.App.5th 311 (2025), as modified on denial of reh'g Jan. 16, 2026 ("a person who is not a buyer does not have standing to pursue a claim under the [Song-Beverly] Act").

The Act defines a buyer as "any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail. As used in this subdivision, "person" means any individual, partnership, corporation, limited liability company, association, or other legal entity that engages in any of these businesses." Civil Code Section 1791(b).

A new car or "[n]ew motor vehicle" means a new motor vehicle that is bought or used primarily for personal, family, or household purposes. "New motor vehicle" also means a new motor vehicle with a gross vehicle weight under 10,000 pounds that is bought or used primarily for business purposes by a person, including a partnership, limited liability company, corporation, association, or

any other legal entity, to which not more than five motor vehicles are registered in this state.” (Ca Civ § 1793.22(e)(2) (emphasis added).)

There are two types of plaintiffs who have statutory standing to bring Song-Beverly claims under its provisions related to a “new motor vehicle”: (1) an individual whose vehicle is “bought or used primarily for personal, family, or household purposes”; and (2) an individual or legal entity (e.g., a corporation) who has “not more than five motor vehicles ... registered in this state” and whose vehicle is bought or used primarily for business purposes with a gross weight “under 10,000 pounds.” *Park City Services v. Ford Motor Co.* (2006) 144 Cal.App.4th 295, 306.

Defendant contends that Plaintiff cannot prevail on his Song-Beverly claims because he is not the purchaser of the vehicle and the vehicle was not purchased for personal use. Rather, Defendant contends, the vehicle was purchased by Business Communications Solutions, Inc., which Defendant describes as the “primary purchaser,” for commercial use.

Purchase/ownership of the vehicle

To support its contention that the corporation purchased the vehicle, Defendant points to the retail sales installment contract (“RISC”) and the vehicle registration.

The RISC shows the corporation and Plaintiff both as purchasers. The corporation is named first, but Plaintiff is name as “co-buyer.” [Defendant’s COE (ROA #103), Ex. 2.] The vehicle registration shows both the corporation and Plaintiff hold title to the vehicle. [*Id.*, Ex. 5. *See also* Goethals Decl. (ROA #205), Ex. F.]

Defendant also points to deposition testimony by Plaintiff that he does not recall who paid the down payment. [Defendant’s COE, Ex. 3 (Plaintiff Depo.) at 91. Further, Defendant contends that the corporation took at the loan to purchase the vehicle. [*Id.*, Ex. 4 (account history in the name of the corporation).] But Plaintiff presents evidence that the loan approval was in as to both the corporation and Plaintiff. [Goethals Decl. (ROA # 205), Ex. D.] Additionally, the car insurance documents show both as insured drivers. [*Id.*, Ex. G.]

Finally, the RISC indicates that the vehicle was purchase for business use. In rebuttal, Plaintiff presents deposition testimony by finance director at BMW Irvine that the section of the RISC marked “business or commercial” is automatically checked when one of the purchasers of a vehicle is a business, and that this cannot be changed even if a buyer says otherwise. [*Id.*, Ex. H.] In his

deposition, Plaintiff testified to personal use. [Defendant's COE, Ex. 3 at 22:13-19; Goethals Decl., ¶9 (declaring Plaintiff is the primary driver of the vehicle).]

With the totality of the evidence presented, there is a triable issue of fact whether Plaintiff is a purchaser of the vehicle. The same is true for whether the vehicle was purchased for commercial or personal use.

Defendant notes in its separate statement that the corporation is not a party to this action. But only in reply does it expressly argue that the corporation is a necessary party. [Reply (ROA # 207) at 3-4.] Plaintiff has already filed a motion to amend the complaint to add the corporation. [Motion to Amend (ROA ## 161, 168 Ex. 2.)]

Based on the above, Defendant's motion for summary judgment and its motion for summary adjudication as to the first, second, and third causes of action are denied.

Fourth Cause of Action for Violation of the Magnuson-Moss Warranty Act

The Magnuson-Moss Warranty Act defines a "consumer" as "a buyer (other than for purposes of resale) of any consumer product, any person to whom such product is transferred during the duration of an implied or written warranty (or service contract) applicable to the product, and any other person who is entitled by the terms of such warranty (or service contract) or under applicable State law to enforce against the warrantor (or service contractor) the obligations of the warranty (or service contract)." Magnuson-Moss Warranty Act, 15 U.S.C. § 2301(3).

On the same evidence as discussed above, Defendant contends that Plaintiff is not the buyer or owner of the vehicle and thus is not a "consumer" with standing to bring a claim under the Magnuson-Moss Warranty Act. But for the reasons, and on the evidence, discussed above, there is a triable issue of fact on these issues. Accordingly, summary adjudication of this cause of action is denied.

Fifth Cause of Action for Violation of the Consumer Legal Remedies Act

In addition to repeating its contention regarding Plaintiff's status as a buyer of the vehicle, for this cause of action Defendant argues that Plaintiff cannot sustain a claim for violation of the Consumer Legal Remedies Act ("CLRA") because Plaintiff did not buy the vehicle from Defendant but from a dealer.

According to the RISC, the seller of the vehicle was Irvine BMW. [Goethals Decl., ¶ 3 and Exs. A-C.] Defendant has made a prima

		facie showing that it was not the seller of the vehicle. Civ. Code §§ 1770, 1780, 1782. In opposition, Plaintiff does not address this point but only argues that Defendant’s attacks all fail for the same reason its attacks on the first through third causes of action fail. This does not address the argument specific to the CLRA claim that <i>Defendant</i> was not the seller regardless of who was the buyer. Defendant’s motion for summary adjudication of Plaintiff’s fifth cause of action is granted.
11.	2024-1408350 Guo vs. Je Beaute, Inc.	The motion for summary judgment by Defendant Mishell Hsu (“Hsu”) on the Complaint filed by Plaintiff Jingyi Guo (“Plaintiff”) is granted. The Court declines to consider Hsu’s alternative motion for summary adjudication. The motion for summary judgment by Defendant Fei He on Plaintiff’s Complaint is vacated. <u>HSU MSJ/MSA</u> As an initial matter, the Court notes Hsu did not properly serve the notice and moving papers on Plaintiff. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) There is no showing that Plaintiff affirmatively consented to electronic service. However, Plaintiff served and filed a timely opposition without objecting to service. In addition, Hsu did not serve the notice and moving papers on Cross-Defendant Sanqian Zhang (“Zhang”), who already appeared by the time Hsu filed this motion. However, the Court exercises its discretion to proceed with the merits of the motion. (<i>Caruthers Bldg. Co. v. Johnson</i> (1916) 174 Cal. 20, 24 [“The failure to serve a given party will not deprive the court of jurisdiction to grant the motion in so far as it can be granted without affecting the rights of the party not served.”].) The Court also notes Plaintiff’s electronic service of Plaintiff’s opposition on Zhang, a self-represented litigant, is improper. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) The Court exercises its discretion to consider Plaintiff’s opposition despite improper service on Zhang. (<i>Caruthers Bldg. Co. v. Johnson</i>, 174 Cal. at 24.) The Court further notes Hsu did not properly serve Hsu’s reply on Plaintiff and did not serve Zhang. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) The Court declines to consider the papers Hsu filed in support of Hsu’s reply. Plaintiff did not file a separate statement in opposition to the motion. “The opposition papers shall include a separate statement